

HOUSE BILL 421

By Marsh

AN ACT to amend Tennessee Code Annotated, Title 7, Chapter 34 and Title 7, Chapter 82, relative to continuing education for members of utility district boards.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 7-82-307(b)(5)(A), is amended by designating the existing language as subdivision (i) and adding the following as a new subdivision (ii):

(ii) If a person becomes ineligible to serve as a utility district commissioner under subdivision (b)(5)(A)(i) for failing to timely meet the training and continuing education requirements set forth in § 7-82-308, the person may file a petition for reinstatement of the person's eligibility to serve as a utility district commissioner with the Tennessee board of utility regulation. The person shall not file a petition for reinstatement until after the completion of the term of office for which the person has failed to meet the required training and continuing education requirements that caused the person's ineligibility to serve. The board shall conduct an informal hearing on the petition and may issue an order establishing the terms and conditions for the reinstatement of eligibility. The order must require the petitioner to obtain twelve (12) hours of training and continuing education within one (1) year of the date of the order, must include an effective date for eligibility reinstatement, and may include any other terms and conditions for reinstatement deemed appropriate by the board.

SECTION 2. Tennessee Code Annotated, Section 7-82-702(b)(1), is amended by adding the following as a new subdivision:

() Petitions for reinstatement of a person's eligibility to serve as a utility district commissioner pursuant to § 7-82-307(b)(5)(A)(ii).

SECTION 3. Tennessee Code Annotated, Section 7-34-115(j)(2), is amended by deleting the language "twelve (12)" and substituting instead "six (6)".

SECTION 4. Tennessee Code Annotated, Section 7-82-308(f)(2), is amended by deleting the language "twelve (12)" and substituting instead "six (6)".

SECTION 5. This act takes effect upon becoming a law, the public welfare requiring it.